

TOWN OF HINGHAM  
ZONING BOARD OF APPEALS

207  
TOWN CLERK'S  
DEC 14 1988  
HINGHAM, MASS.

IN THE MATTER OF:

Applicant: Hingham Housing Authority  
30 Thaxter Street  
Hingham, Massachusetts 02043

Property Owner: Town of Hingham  
7 East Street  
Hingham, MA 02043

Premises: School Tract II  
Beal Street at  
Squirrel Hill Lane  
Hingham, MA 02043

This matter came before the Board on the application of Hingham Housing Authority for a comprehensive permit pursuant to Massachusetts General Laws, Chapter 40B, Sections 20-23, to construct and operate a residential-educational facility for 12 emotionally troubled adolescents in an Official and Open Space zoning district. A public hearing was held after posting, notice and publication on October 6, 1988, and was continued on November 10, 1988 at which time the Board closed the public hearing. The members of the Board who were present at the hearing and voted on the application were:

John P. Ryan, Chairman  
Alexander A. Randall, Regular Member  
William J. Salisbury, Associate Member

FACTUAL BACKGROUND

According to testimony and written materials submitted with the application and at the hearing, the Board was able to determine the following facts.

The Hingham Housing Authority is a public agency created pursuant to Massachusetts General Laws Chapter 121B, Section 3 and is charged with the duty to provide housing for the elderly, low and moderate income families and the handicapped. As such, the Housing Authority is qualified to submit an application for a comprehensive permit under Massachusetts General Laws Chapter 40B, Section 21.

Hingham Housing Authority proposes to construct a duplex community residence and educational facility for emotionally troubled adolescents on a two-acre parcel of land located on the southerly side of Beal Street at Squirrel Hill Lane. The building site is a portion of the 15 acre parcel known as School Tract II. The Housing Authority is the holder of a written option to purchase the premises.

The premises are situated in a zoning district classified under the Zoning By-Law as Official and Open Space. The land is undeveloped, containing an abandoned administrative building and abandoned ammunition bunkers. The premises are restricted to educational use by a restriction in the deed from the United States of America to the Town of Hingham.

The Housing Authority intends to construct the facility and lease it for an initial term of five years to the South Shore Educational Collaborative, an organization sponsored by the school systems of eight South Shore towns, including the Town of Hingham. Students living at the residence will be referred by the member school systems and the Department of Social Services. The residents, who will be between 14-19 years of age, will attend the Quest Program at the East School during the day. During the afternoons and evenings they will be involved in instructional activities, counseling sessions, vocational and recreational activities at the residence. At least three staff persons will be on the premises at all times.

The residence will be constructed with a grant from the Executive Office of Communities and Development under the Chapter 689 Handicapped Housing Program. The operating expenses and educational programs will be funded by the Department of Social Services.

The applicant stated that (i) a large portion of the site will remain open and undeveloped, (ii) the building will be set back at least 100 feet from all property lines, (iii) that utilities are available at the site, and (iv) that traffic will be minimal.

Comments were received from various Town officials. In particular, the Fire Department made numerous recommendations for access improvements, parking and fire lane restrictions, an additional hydrant and installation of a sprinkler system and alarm. The Fire Department acknowledged at the hearing that the Housing Authority was working to address the Fire Department's recommendations and had agreed to the installation of the recommended improvements. The Building Commissioner identified certain items on the building plans of a minor nature which needed to be addressed. In particular, the

Building Commissioner identified parking requirements as an unresolved issue.

Numerous abutters appeared at the hearing. Many questioned the concentration of these types of uses in the area. Security issues were also raised. The applicant agreed to meet with abutters, many of whom are new to the area, to discuss their concerns.

The Board questioned its jurisdiction to grant a comprehensive permit for the proposed use. In response to questioning, a representative of the South Shore Educational Collaborative stated that no restrictions would exist on the family income of the residents. The applicant explained that the statute and regulations enabled a parent or guardian to relinquish custody of the resident to the DSS for the purpose of residing in the proposed facility. Through the operation of the statutory definitions, the facility would thereby qualify as low or moderate income housing for the purposes of Massachusetts General Laws Chapter 40B, Section 20.

#### DECISION

At a regular meeting of the Board held on December 8, 1988, the Board voted unanimously to GRANT to the Hingham Housing Authority a comprehensive permit pursuant to the provisions of Massachusetts General Laws Chapter 40B, Section 20-23 for the construction and use of a two-story, wood frame residential-educational facility for twelve emotionally troubled adolescents, all as described in the application and the supporting materials submitted by the applicant, and subject to the express conditions and limitations set forth below.

#### REASONS FOR DECISION

The Board found that the Hingham Housing Authority is a public agency and therefore entitled to seek a comprehensive permit for the construction of low and moderate income housing pursuant to General Laws Chapter 40B, Section 20-23. The Board found that the proposed use of the facility constitutes low and moderate income housing within the meaning of the aforementioned statute. Accordingly, the Board recognized its limited discretion to deny or unreasonably condition approval of the application.

The Board found that the proposed facility is an educational use which is protected by the provisions of General Laws Chapter 40A, Section 3. Under Chapter 40A, Section 3 a zoning by-law shall not prohibit, regulate or restrict the use of land or structure for educational purposes on land owned or

leased by a governmental agency, except that reasonable regulations concerning the bulk and height of structures and determining yard sizes, lot area, setbacks, open space, parking and building coverage may be imposed.

CONDITIONS AND LIMITATIONS

The comprehensive permit was granted by the Board with the following express conditions.

1. The facility shall be constructed by the Hingham Housing Authority and used as a residential-educational facility for 12 emotionally troubled adolescents. Any change in use shall void this comprehensive permit and require further relief in accordance with the Zoning By-Law.

2. The facility shall be constructed in substantial conformance with the plans prepared by Gale Engineering Company, Inc. and Kanda Associates Architects and submitted with the application, except as modified to meet the requirements of the Fire Department or the Building Commissioner.

3. The applicant shall comply with the requirements of the Fire Department, with the State Building Code, and with the Town Wetlands By-Law. In particular, the applicant shall install a residential fire alarm and sprinkler system.

4. The facility shall be staffed by responsible, qualified personnel at all times, and at least three staff persons shall be on site at all times. The operator of the facility shall take all reasonable precautions to restrict the residents from entering neighboring properties and shall work with abutters to address security concerns.

5. The facility and the grounds shall be maintained in a first class condition at all times.

6. The residents of the facility shall be enrolled in the Quest Program at the East School.

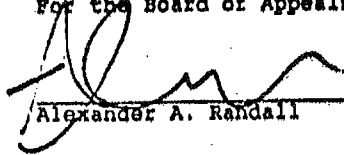
7. No other structures shall be constructed on the parcel identified as School Tract II in the plans submitted.

Each of the foregoing conditions and limitations is in and of itself material to the Board's decision on the application. Accordingly, if any of the foregoing conditions are found by a court of competent jurisdiction to be void or unenforceable, this comprehensive permit shall immediately terminate and the

property shall thereafter be brought into compliance with the requirements of the Zoning By-Law.

For the Board of Appeals,

12-9-88  
Dated

  
Alexander A. Randall

I, Thomas P. Hall, Town Clerk of Hingham, hereby certify that 20 days have elapsed since the filing of the foregoing decision in this office on December 14, 1988, and no notice of appeal from this decision has been received.





I, Eileen A. McCracken, Town Clerk of the Town of Hingham, certify that at the Annual Town Meeting of the Town of Hingham held May 1, 2006, pursuant of Article 38 of the Warrant, it was

**VOTED: That the Town authorize the Town of Hingham, acting through its Board of Selectmen, to amend the restriction contained in the deed from the Town of Hingham to the Hingham Housing Authority dated March 7, 1989, recorded in the Plymouth County Registry of Deeds in Book 9097, Page 158, conveying School Tract II (15.014 acres), which restriction states that "this property is to be used only for a residential educational facility for emotionally disturbed adolescents operated through the Hingham Housing Authority by the South Shore Collaborative or similar entity, or, if required pursuant to MGL c121B §34, by the Massachusetts Executive office of Communities and Development," by adding as an allowable use residential development which includes affordable housing that qualifies for inclusion on the Subsidized Housing Inventory administered by the Massachusetts Department of Housing and Community Development.**

**A 2/3rds Vote Required**

**A Majority Vote**

**2/3rds Declared**

**Motion Adopted**

**A T T E S T:**

Eileen A. McCracken  
Town Clerk